

agement of the estate (*g*). It was therefore always a direct violation of duty to grant a lease for one thousand years (*h*), not only on the ground before noticed that such a demise would in effect be an absolute alienation, but also on [*545] the *principle that no private proprietor would choose to debar himself from profiting by the progressive improvement of the property. Sir Thomas Plumer observed, "The compensation which the trustees receive may be adequate at the date of the contract, but they are precluded for one thousand years from any advantage of *increased* value. It is true they are secured from *diminution*, and in some instances to guard against fluctuation may be as much the interest of one party as the other; but that would be an answer to all cases in which the trustees have made an alienation at a fixed rent. At the same time," continued his Honour, "it is just to say, that these principles seem not to have been acted upon at so early a period as 1670. In many cases in Duke's collection the Court acted on inadequacy of value, in none on mere extent of term" (*a*).

55. **Husbandry leases.** — *Husbandry* or *farm* leases should not be granted for a term certain exceeding *twenty-one years* (*b*). But neither is this rule to be taken as absolutely inflexible; but where the alienation is for any longer period, as for ninety-nine years, the Court will put it upon those who are dealing *for* and *with* the charity estate to show the reasonableness of such a transaction, for *primâ facie* it is unreasonable; there is no instance of a power in a marriage settlement to lease for ninety-nine years, except with refer-

(*g*) See *Attorney-General v. Owen*, 10 Ves. 560; *Attorney-General v. Brooke*, 18 Ves. 326; *Attorney-General v. Griffith*, 13 Ves. 575.

(*h*) *Attorney-General v. Green*, 6 Ves. 452; *Attorney-General v. Cross*, 3 Mer. 540; *Attorney-General v. Dixie*, 13 Ves. 531; *Attorney-General v. Brooke*, 18 Ves. 326.

(*a*) *Attorney-General v. Warren*, 2 Sw. 304. But see *Poor of Yervel v. Sutton, Duke*, 43, resolution 2; *Rowe*

v. Almsmen of Tavistock, Id. 42; *Wright v. Newport Pond School*, Id. 46; *Crouch v. Citizens of Worcester*, Id. 33.

(*b*) See *Attorney-General v. Owen*, 10 Ves. 560; *Attorney-General v. Backhouse*, 17 Ves. 291; *Rowe v. Almsmen of Tavistock, Duke*, 42; *Wright v. Newport Pond School*, Id. 46; *Poor of Yervel v. Sutton*, Id. 43, resolution 2; *Attorney-General v. Pargeter*, 6 Beav. 150.